
CITY OF GALLATIN COUNCIL COMMITTEE MEETING

January 12, 2021

6:00 pm

ELECTRONIC MEETING

Pursuant to Governor Lee's Executive Orders No. 16 and subsequent orders and the need to limit the community spread of COVID-19, the January 12, 2021 Gallatin Council Committee Meeting will be held by electronic means. The meeting will be live-streamed to protect the public health, safety and welfare of the Council and citizens of Gallatin. Join the Zoom Meeting at <https://us02web.zoom.us/j/89557996153>, dial +1 470 250 9358 or +1 470 381 2552, and enter Webinar ID: 895 5799 6153.

- Call to Order – Councilman Fann
- Roll Call: Alexander – Fann – Vice Mayor Fennell – George – Hayes– Love – Overton – Mayor Brown
- Approval of Minutes: December 08, 2020 Council Work Session
- Public Recognition
- Mayor's Comments

AGENDA

1. Resolution No. R21Ø1-1 Authorizing the Mayor to Sign Contract "720", 2020 with Infinity Pipeline, Inc. **(David Gregory, Public Utilities Superintendent)**
2. Resolution No. R21Ø1-2 Authorizing the Mayor to Sign Contract "820", 2020 with Cleary Construction, Inc. **(David Gregory, Public Utilities Superintendent)**
3. Ordinance No. O21Ø1-1 Appropriating Funds for Completion of Infrastructure Improvements in the Home Depot Subdivision **(Nick Tuttle, City Engineer)**
4. Report on Bond Sale **(Rachel Nichols, Finance Director)**
5. Monthly Financial Reports for November **(Rachel Nichols, Finance Director)**
6. Resolution No. R21Ø1-9 Approving an Indemnity and Hold Harmless Agreement with Certificate of Liability Insurance to Use the City-Maintained Right-of-Way of Duvall Drive, Becks Place and Sperling Drive in the Cumberland Point Subdivision for the Installation and Maintenance of Street Trees **(Bill McCord, City Planner)**
7. Resolution No. R21Ø1-3 Adopting and Recommending to the Sumner County Coordinating Committee an Amendment to the City of Gallatin Urban Boundary of the Growth Plan for Sumner County Ratified by the Gallatin City Council Pursuant to Public Chapter 1101, Acts of 1998 **(Bill McCord, City Planner)**
8. Reappointments to the Industrial Development Board and the Health Educational and Housing Facilities Board **(James Fenton, Executive Director of EDA)**
9. Gallatin Department of Electricity Board Appointment **(Paige Brown, Mayor)**

- Other Business
- Department Head Reports
- Adjourn

The City of Gallatin Council Committee Electronic Meeting

Tuesday, December 8, 2020

Vice Mayor Camp called the meeting to order at 6:00 P.M.

Pursuant to Tennessee Governor Bill Lee's Executive Order #16, #34, #51, #60 and #65 and the need to limit the community spread of COVID-19, the December 8, 2020 Gallatin City Council Committee Meeting was held by electronic means. The meeting was live-streamed to protect the public health, safety and welfare of the Council and citizens of Gallatin. Instructions for public participation in the meetings were available on the City's website.

Councilman Overton made motion to allow the meeting electronically; Councilman Alexander seconded.

Vice Mayor Camp requested a roll call vote to allow the meeting electronically.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Camp	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilman Fennell	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

Vice Mayor Camp asked for a roll call of those present.

City Recorder Connie Kittrell called the roll and the following were present:

Vice Mayor Steve Camp	Present
Councilman John D. Alexander	Present
Councilman Steve Fann	Present
Councilman Shawn Fennell	Present
Councilman Craig Hayes	Present
Councilwoman Lynda Love	Present
Councilman Jimmy Overton	Present

Department Heads and Others Present:

Bill McCord, City Planner	Jeff Hentschel, Communications Director
Chuck Stuart, Building Official	Lori Smiley, I.T. Director
Connie Flood, H.R. Director	Nick Tuttle, City Engineer
Connie Kittrell, City Recorder	Rachel Nichols, Finance Director
David Brown, Parks & Rec. Director	Susan High-McAuley, City Attorney
David Gregory, Public Utilities Director	Victor Williams, Fire Chief
Don Bandy, Police Chief	Zach Wilkinson, Public Works Superintendent
James Fenton, EDA Director	

Approval of Minutes

Vice Mayor Camp presented the October 27, 2020 and November 10, 2020 Council Committee Electronic minutes for approval.

Councilwoman Love made motion to approve; Councilman Fennell seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Camp	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilman Fennell	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

Public Recognition

Vice Mayor Camp opened public recognition.

Communications Director Jeff Hentschel called upon those wishing to speak.

- Michelle Jouvence of 1335 Long Hollow Pike read a statement by Debra Holmes of 2134 Long Hollow Pike in opposition of the urban growth boundary. Ms. Jouvence also spoke in opposition of the urban growth boundary.

- Rene Saunders of 2092 Rodman Boulevard recognized Police Officer Zubieta for his help with her son's motor vehicle accident.

With no one else wishing to speak public recognition was closed.

Mayor's Comments

- Mayor announced the Christmas Parade is December 12, 2020
- Mayor mentioned West Eastland Church of Christ is having a food giveaway on December 12, 2020
- Mayor stated this is possibly the last meeting of the year and thanked everyone for all their hard work this past year

Agenda

1. Ordinance #O2012-54 Appropriating \$52,264 for the Use and Benefit of the City of Gallatin in Support of the Town Creek Tributary Watershed Study

City Engineer Nick Tuttle presented this ordinance.

Councilwoman Love made motion to move to council; Councilman Alexander seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Camp	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilman Fennell	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

2. Monthly Financial Reports for October

Finance Director Rachel Nichols presented this report.

3. Ordinance #O2012-53 Amending Article 12, Supplementary District Regulations, Section 12.01 Regulations Applicable for All District Regulations, Section 12.01.020 Fences, Walls and Hedges of the Gallatin Zoning Ordinance; Repealing Conflicting Ordinances; Providing for Severability, and Providing for an Effective Date

City Planner Bill McCord presented this resolution and provided a PowerPoint presentation.

Council discussed.

Councilman Overton made motion to move to council; Councilwoman Love seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Camp	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilman Fennell	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

4. Presentation of Executive Summary for Amending the Gallatin Urban Growth Boundary

City Planner Bill McCord presented this executive summary and provided a PowerPoint presentation.

Economic Development Agency Director James Fenton provided further information.

There was much discussion.

5. Resolution #R2012-65 in Support of SIA Grant for the Improvement of Three Intersections for Access to the City of Gallatin Industrial Park

City Engineer Nick Tuttle presented this resolution and provided a PowerPoint presentation.

Economic Development Agency Director James Fenton shared support for this resolution.

Councilman Overton made motion to move to council; Councilman Alexander seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Camp	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilman Fennell	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

6. Discussion of Dates for 2021 City Council Meetings and Council Work Sessions

Mayor presented the proposed dates for city council and council work session meetings.

Councilman Overton made motion to move to council; Councilman Hayes seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Camp	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilman Fennell	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

7. Discussion of Gallatin Public Utilities Superintendent Position

Mayor asked council how to proceed with filling the position.

Human Resource Director Connie Flood shared the expert panels recommendation for the internal candidate.

Councilman Overton made motion to have a special called meeting on Tuesday, December 15, 2020 at 6:00 P.M.; Councilman Alexander seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Camp	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilman Fennell	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

8. Discussion of Gallatin Department of Electricity Power Board

Mayor stated she will announce a recommendation for appointment to the Electricity Power Board to replace Mr. Al Bennett.

Other Business

Vice Mayor Camp opened other business.

- Mayor asked council if they would like to continue virtual meetings if Governor Lee allows.

Council agreed.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Camp	Abstained
Councilman Alexander	Yes
Councilman Fann	Yes
Councilman Fennell	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 6 ayes, 0 nays and 1 abstention.

- Councilman Alexander announced the passing of James Austin.

Mr. Alexander asked everyone to keep Lady Lou Bennett and the Austin family in their prayers.

Mr. Alexander stated he and his wife will be giving out groceries on Christmas Eve at 780 Anthony Street at 12:00 P.M.

With no one else wishing to speak other business was closed.

Department Head Reports

Vice Mayor Camp opened department head reports.

- City Planner Bill McCord reminded council about one on one meetings with planning staff members.

Mr. McCord announced there is an opportunity for a letter of intent for a grant with TDOT that will be shared with the county and other cities for a bike and pedestrian study.

Councilman Overton made motion to move to council; Councilwoman Love seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Camp	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilman Fennell	Yes
Councilman Hayes	No Vote (Left Meeting)

Council Committee Minutes
December 8, 2020

Councilwoman Love
Councilman Overton

Yes
Yes

Motion passed with 6 ayes and 0 nays.

With no one else wishing to speak department head reports was closed.

Adjourn

Vice Mayor Camp adjourned the meeting at 7:17 P.M. without objection.

Mayor Paige Brown

Connie Kittrell City Recorder

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

[January 12, 2021]

DEPARTMENT: Utilities

AGENDA # 1

SUBJECT:

Resolution No. R2101-1

SUMMARY:

Resolution Authorizing The Mayor to sign Contract "720", 2020 with Infinity Pipeline, Inc.

RECOMMENDATION:

ATTACHMENT:

☒ Resolution
☐ Ordinance

☒ Correspondence
☐ Contract

☒ Bid Tabulation
☐ Other

Approved ☐
Rejected ☐
Deferred ☐

Notes:

Project Budget
Notice of Award

This contract is funded by Project Wool Hawk for water transmission and distribution donations of \$3,400,000.00. See attached Ordinance O02007-29.

RESOLUTION NO. R21Ø1-1

**RESOLUTION AUTHORIZING THE MAYOR TO SIGN
CONTRACT "720", 2020 WITH INFINITY PIPELINE, INC.**

BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that the Mayor of Gallatin is authorized to sign and execute contract documents with Infinity Pipeline, Inc. in the amount of \$1,351,625.00 for the installation of Industrial Park Force Main – Phase 2 under Contract "720", 2020.

BE IT FURTHER RESOLVED, that this resolution shall take effect from and after its final passage, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL, CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY, CITY ATTORNEY

ORDINANCE APPROPRIATING \$8,400,000 FOR
PROJECT WOOL HAWK UTILITY INFRASTRUCTURE

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$8,400,000 is hereby appropriated from the Water/Sewer Fund Donations, account number 413-36700, with \$3,400,000 being appropriated to Water Transmission and Distribution, account 41352114-934-256, and \$5,000,000 being appropriated to Sewer Collection (Lines), account 41352211-934-256, for the utility line infrastructure instillation related to Project Wool Hawk; and,

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect upon passage, the public welfare requiring such.

PASSED FIRST READING: July 7, 2020.

PASSED SECOND READING: July 21, 2020.


MAYOR PAIGE BROWN

ATTEST:


CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:


SUSAN HIGH-McAULEY
CITY ATTORNEY



JAMES C. HAILEY & COMPANY

Consulting Engineers

1619 Galleria Blvd
Brentwood, Tennessee 37027
Telephone: 615-883-4933
Fax: 615-883-4937

JAMES C. HAILEY, P.E.

ROBERT L. RAMSEY, P.E.
MATTHEW R. TUCKER, P.E.
MICHAEL N. GREEN, P.E.

December 8, 2020

Mr. David Gregory
City of Gallatin
Department of Public Utilities
239 Hancock Street
Gallatin, TN 37066

RE: Contract 720
Industrial Park Force Main – Phase 2

Dear Mr. Gregory:

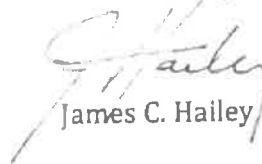
On December 8, 2020 bids were received for the above-referenced project. A tabulation of bids is attached displaying the bids for each contractor for Contract 720.

All bids were sealed with proper documentation, and no irregularities were apparent at the bid opening. Based on our evaluation, we recommend that the City of Gallatin award the **Contract 720 - Industrial Park Force Main – Phase 2 to Infinity Pipeline, Inc.** in the amount of **\$1,351,625.00**. Also enclosed are a preliminary project budget and a Notice of Award to be signed by the Mayor.

If you have any questions or if we can be of assistance, please let us know.

Sincerely,

JAMES C. HAILEY & COMPANY
Consulting Engineers



James C. Hailey

Enclosures

NOTICE OF AWARD

TO: Infinity Pipeline, Inc.
PO Box 928
Bowling Green, KY 42102

PROJECT DESCRIPTION: CONTRACT 720 – INDUSTRIAL PARK FORCE MAIN – PHASE 2

The **OWNER** has considered the **BID** submitted by you for the above-described **WORK** in response to its Advertisement to Bid dated November 2020, and Information for Bidders.

You are required by the Information for Bidders to execute the Agreement and furnish the required **CONTRACTOR'S** Performance and Payment Bond within ten (10) calendar days from the date of this Notice to you.

If you fail to execute said Agreement and to furnish said bonds within ten (10) days from the date of this Notice, said **OWNER** will be entitled to consider all your rights arising out of the **OWNER'S** acceptance of your **BID** as abandoned and as a forfeiture of your Bid Bond. The **OWNER** will be entitled to such other rights as may be granted by law.

You are required to return an acknowledged copy of this **NOTICE OF AWARD** to the **OWNER**.

Dated this ____ day of _____, 2021.

City of Gallatin
OWNER
BY _____
Title Mayor

ACCEPTANCE OF NOTICE

Receipt of the above **NOTICE OF AWARD** is hereby acknowledged

By Infinity Pipeline, Inc.

this the ____ day of _____, 2021

By _____

Title _____

CITY OF GALLATIN

Contract 720 - Industrial Park Force Main - Phase 2

PROJECT BUDGET

CONSTRUCTION	\$	1,351,625.00
ENGINEERING DESIGN	\$	70,000.00
ENGINEERING DURING CONSTRUCTION	\$	25,000.00
INSPECTION	\$	34,000.00
PERMITS, FEES, SURVEYS, ETC	\$	6,000.00
CONTINGENCY	\$	<u>73,375.00</u>
TOTAL ESTIMATED PROJECT COST	\$	<u><u>1,560,000.00</u></u>

BID TABULATION CITY OF GALLATIN CONTRACT 820 - TOWN CREEK INTERCEPTOR EXTENSION 239 HANCOCK STREET GALLATIN, TN 37066 BID DATE: 12/08/2020						JAMES C. HAILEY & COMPANY Consulting Engineers 1619 Galleria Blvd Brentwood, TN 37027-2926 JCH PS 18152						
BID SECURITY			BID BOND		BID BOND		BID BOND		BID BOND			
BIDDER AND ADDRESS			CLEAR'S CONSTRUCTION, INC. 2006 EDMONDSON RD TOMPKINSVILLE, KY 40167		SCOTT & RITTER, INC. PO Box 148 Bowling Green, KY 42302		JSI CONSTRUCTION, LLC. PO Box 44 Summersville, TN 37172		CHARLES DEWEES CONSTRUCTION, INC., 785 Industrial Bypass North Franklin, KY 42134		CIVIL CONSTRUCTION, INC., po Box 685 Franklin, TN 37061	
ITEM	QTY	UNIT DESCRIPTION	UNIT PRICE	TOTAL AMOUNT	UNIT PRICE	TOTAL AMOUNT	UNIT PRICE	TOTAL AMOUNT	UNIT PRICE	TOTAL AMOUNT	UNIT PRICE	TOTAL AMOUNT
1	719	FURNISH & INSTALL 18" PVC GRAVITY SEWER PIPE PS 115, Minimum Wall Thickness 0.871" @ 8' - 10' DEEP	175.00	121,551.00	196.00	139,256.00	170.00	120,570.00	292.33	208,863.00	225.00	162,000.00
2	2,452	FURNISH & INSTALL 18" PVC GRAVITY SEWER PIPE PS 115, Minimum Wall Thickness 0.871" @ 8' - 8' DEEP	173.00	422,750.00	197.00	482,636.00	183.00	437,250.00	292.91	717,829.20	260.00	619,000.00
3	1,500	FURNISH & INSTALL 18" PVC GRAVITY SEWER PIPE PS 115, Minimum Wall Thickness 0.871" @ 8' - 10' DEEP	179.00	322,200.00	194.00	176,400.00	200.00	160,000.00	298.00	446,250.00	241.00	315,000.00
4	400	FURNISH & INSTALL 18" PVC GRAVITY SEWER PIPE PS 115, Minimum Wall Thickness 0.871" @ 10' - 12' DEEP	184.00	73,600.00	196.00	78,000.00	210.00	84,000.00	298.63	119,350.00	469.00	150,800.00
5	30	FURNISH & INSTALL 18" PVC GRAVITY SEWER PIPE PS 115, Minimum Wall Thickness 0.871" @ 12' - 14' DEEP	198.00	5,900.00	200.00	10,000.00	230.00	11,500.00	302.62	18,131.00	612.00	16,660.00
6	34	FURNISH & INSTALL 18" PVC GRAVITY SEWER PIPE PS 115, SDR 26, Minimum Wall Thickness 0.323" @ 0' - 6' DEEP	146.00	4,964.00	113.00	3,198.00	80.00	2,720.00	196.79	6,622.00	120.00	4,080.00
7	43	FURNISH & INSTALL 18" PVC GRAVITY SEWER PIPE PS 115, SDR 26, Minimum Wall Thickness 0.323" @ 6' - 8' DEEP	150.00	6,150.00	116.00	4,498.00	90.00	3,870.00	216.16	8,294.00	150.00	6,450.00
8	32	FURNISH & INSTALL 18" PVC GRAVITY SEWER PIPE PS 115, SDR 26, Minimum Wall Thickness 0.323" @ 8' - 10' DEEP	155.00	4,960.00	117.00	3,744.00	115.00	3,680.00	216.07	7,022.00	270.00	8,120.00
9	4	FURNISH & INSTALL 18" 8" SERVICE TEE	1,120.00	4,480.00	1,040.00	4,160.00	1,300.00	5,200.00	2,092.00	10,368.00	1,100.00	4,400.00
10	4	FURNISH & INSTALL 8" SERVICE BEND OR FITTINGS	460.00	1,840.00	90.00	360.00	200.00	800.00	999.47	3,477.32	98.00	392.00
11	20	FURNISH & INSTALL 6" PVC SERVICE LINE PS 115, SDR 26, Minimum Wall Thickness 0.241"	61.00	1,220.00	30.00	600.00	60.00	1,200.00	481.00	9,620.00	148.00	2,960.00
12	23	EA FURNISH & INSTALL STANDARD 5" DIAMETER MANHOLES (Over 0' - 6')	5,300.00	121,500.00	3,720.00	14,250.00	6,400.00	140,000.00	7,160.10	1,29,227.00	5,950.00	1,28,750.00
13	55	EA FURNISH & INSTALL 5" DIAMETER EXTRA MANHOLE DEPTH (OVER 6')	223.00	12,265.00	299.00	16,445.00	570.00	31,310.00	837.27	11,500.32	457.00	25,135.00
14	1	EA FURNISH & INSTALL STANDARD 4" DIAMETER MANHOLES	4,000.00	4,000.00	4,610.00	4,610.00	4,400.00	4,400.00	2,510.82	2,510.82	3,995.00	3,995.00
15	1	EA FURNISH & INSTALL 4" DIAMETER EXTRA MANHOLE DEPTH (OVER 6')	220.00	220.00	263.00	263.00	350.00	350.00	1,827.61	1,827.61	347.00	347.00
16	1	EA FURNISH & INSTALL 18" 8" DIAMETER MANHOLE COMPLETE INCLUDING 20' - 18" FORCE MAIN, 18" STUB-OUT, WATERIGHT CASTING, 8" VENT AND STEPS	13,000.00	13,000.00	32,663.00	32,663.00	23,000.00	23,000.00	16,236.96	16,236.96	17,710.00	17,710.00
17	2	EA FURNISH & INSTALL MANHOLE VENT ASSEMBLY	9,500.00	19,000.00	6,245.00	12,490.00	6,400.00	12,800.00	6,962.49	12,927.78	9,120.00	18,240.00
18	26	EA FURNISH & INSTALL MANHOLE WATERIGHT FRAME & COVER	650.00	22,400.00	780.00	20,280.00	1,000.00	26,000.00	1,433.07	37,311.00	1,360.00	35,360.00
19	36	LF FURNISH & INSTALL 24" OR 32 5 HOPE CASING AT 24" GAS LINE CROSSING - SHEET 4 - STATION 36+50	393.00	19,720.00	213.00	10,590.00	225.00	11,250.00	136.48	6,674.00	161.00	5,610.00
20	300	TN FURNISH & INSTALL CRUSHED STONE	43.00	12,900.00	29.00	8,700.00	23.00	6,900.00	88.11	14,733.00	33.00	9,900.00
21	690	SY FURNISH & INSTALL PAVEMENT REPLACEMENT	63.00	40,800.00	55.00	33,000.00	60.00	36,000.00	40.18	24,708.00	177.00	1,06,200.00
22	10	CY FURNISH & INSTALL CLASS "A" CONCRETE	744.00	7,440.00	210.00	2,100.00	200.00	2,000.00	332.08	3,320.80	500.00	1,500.00
23	30	CY FURNISH & INSTALL CLASS "B" CONCRETE	158.00	4,740.00	223.00	6,690.00	6,300.00	18,900.00	331.21	19,870.30	318.00	9,540.00
24	70	SY FURNISH & INSTALL EXPOSED AGGREGATE CONCRETE	74.00	5,180.00	111.00	7,770.00	180.00	11,200.00	118.10	8,337.00	126.00	8,820.00
25	125	CY FURNISH & INSTALL FLOWABLE FILL CONCRETE	155.00	19,375.00	297.00	37,125.00	140.00	17,500.00	206.04	11,312.50	234.00	35,800.00
26	30	CY FURNISH & INSTALL EXTRA DEPTH EXCAVATION WHERE ORDERED BY ENGINEER	47.00	1,410.00	2.30	75.00	75.00	2,250.00	52.24	1,067.20	92.00	2,760.00
27	1	EA FURNISH & INSTALL LUMP SUM BID ITEM NO. 1 E MAIN STREET CROSSING - SHEET 4 OF PLANS	117,900.00	117,900.00	108,135.00	108,135.00	110,000.00	110,000.00	113,406.18	113,406.18	113,340.00	113,340.00
28	1,130	LF FURNISH & INSTALL 8" PRESSURE CLASS 300 DUCTILE IRON WATER LINE	114.00	111,000.00	90.00	101,500.00	90.00	102,500.00	126.34	142,521.00	99.10	114,425.00
29	20	LF FURNISH & INSTALL 8" PRESSURE CLASS 300 DUCTILE IRON WATER LINE	112.00	2,240.00	69.00	1,380.00	70.00	1,400.00	102.23	2,044.60	347.00	6,940.00
30	1	EA FURNISH & INSTALL 8" GATE VALVE & BOX	1,800.00	1,800.00	1,520.00	1,520.00	1,800.00	1,800.00	2,239.17	2,239.17	2,440.00	2,440.00
31	1	EA FURNISH & INSTALL 8" GATE VALVE & BOX	1,300.00	1,300.00	1,315.00	1,315.00	1,350.00	1,350.00	1,627.08	1,627.08	1,530.00	1,530.00
32	1	EA FURNISH & INSTALL 8" RESERV. VALVE	13,000.00	13,000.00	8,635.00	8,635.00	10,000.00	10,000.00	21,811.00	21,811.00	9,060.00	9,060.00
33	1	EA FURNISH & INSTALL 8" TAPPING TEE & VALVE	5,200.00	5,200.00	3,640.00	3,640.00	4,100.00	4,100.00	4,847.61	4,847.61	6,560.00	6,560.00
34	1	EA FURNISH & INSTALL 8" FIRE HYDRANT	4,500.00	4,500.00	2,870.00	2,870.00	4,000.00	4,000.00	3,930.54	3,930.54	4,380.00	4,380.00
35	15.00	LB FURNISH & INSTALL M.J.D.I. FITTINGS	0.10	1.50	3,120.00	46.80	1,200.00	1,200.00	7.49	8.98	4.55	6.82
36	2	EA FURNISH & INSTALL CONNECTION BRACE	4,000.00	8,000.00	1,460.00	2,920.00	2,500.00	5,000.00	629.61	1,699.22	923.00	1,846.00
37	9	EA FURNISH & INSTALL MANHOLE ALUMINUM PIPE MANHOLE	330.00	2,970.00	365.00	3,285.00	3,900.00	35,100.00	613.42	5,520.78	363.00	3,267.00
38	1	LF TRAFFIC CONTROL	27,000.00	27,000.00	27,220.00	27,220.00	72,500.00	72,500.00	62,709.11	62,709.11	46,400.00	46,400.00
39	6,500	LF MAIN LINE CLEAN-UP	0.00	52,500.00	8.00	52,500.00	6.00	32,800.00	8.00	52,000.00	8.00	52,000.00
TOTAL BASE BID				1,691,510.00		1,751,821.00		1,789,940.00		2,444,641.61		2,474,006.00

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

[January 12, 2021]

DEPARTMENT: **Utilities**

AGENDA # 2

SUBJECT:

Resolution No. R2101-2

SUMMARY:

Resolution Authorizing The Mayor to sign Contract "820", 2020 with Cleary Construction, Inc.

RECOMMENDATION:

ATTACHMENT:

☒ Resolution
☐ Ordinance

☒ Correspondence
☐ Contract

☒ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

Project Budget
Notice of Award

This contract is funded by Project Wool Hawk for sanitary sewer installations, \$5,000,000.00. See attached Ordinance O02007-29.

RESOLUTION NO. R21Ø1-2

**RESOLUTION AUTHORIZING THE MAYOR TO SIGN
CONTRACT "820", 2020 WITH CLEARY CONSTRUCTION, INC.**

BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that the Mayor of Gallatin is authorized to sign and execute contract documents with Cleary Construction, Inc. in the amount of \$1,691,510.00 for the installation of Town Creek Interceptor Extension under Contract "820", 2020.

BE IT FURTHER RESOLVED, that this resolution shall take effect from and after its final passage, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

ORDINANCE NO. 02007-29

ORDINANCE APPROPRIATING \$8,400,000 FOR
PROJECT WOOL HAWK UTILITY INFRASTRUCTURE

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$8,400,000 is hereby appropriated from the Water/Sewer Fund Donations, account number 413-36700, with \$3,400,000 being appropriated to Water Transmission and Distribution, account 41352114-934-256, and \$5,000,000 being appropriated to Sewer Collection (Lines), account 41352211-934-256, for the utility line infrastructure instillation related to Project Wool Hawk; and,

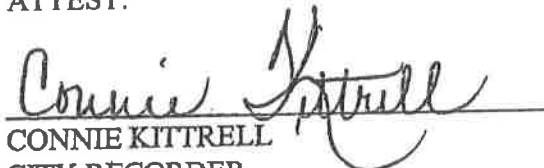
BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect upon passage, the public welfare requiring such.

PASSED FIRST READING: July 7, 2020.

PASSED SECOND READING: July 21, 2020.


MAYOR PAIGE BROWN

ATTEST:


CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:


SUSAN HIGH-McAULEY
CITY ATTORNEY

 COPY

JAMES C. HAILEY & COMPANY

Consulting Engineers

1619 Galleria Blvd
Brentwood, Tennessee 37027
Telephone: 615-883-4933
Fax: 615-883-4937

JAMES C. HAILEY, P.E.

ROBERT L. RAMSEY, P.E.
MATTHEW R. TUCKER, P.E.
MICHAEL N. GREEN, P.E.

December 8, 2020

Mr. David Gregory
City of Gallatin
Department of Public Utilities
239 Hancock Street
Gallatin, TN 37066

**RE: Contract 820
Town Creek Interceptor Extension**

Dear Mr. Gregory:

On December 8, 2020 bids were received for the above-referenced project. A tabulation of bids is attached displaying the bids for each contractor for Contract 820.

All bids were sealed with proper documentation, and no irregularities were apparent at the bid opening. Based on our evaluation, we recommend that the City of Gallatin award the **Contract 820 - Town Creek Interceptor Extension to Cleary Construction, Inc.** in the amount of **\$1,691,510.00**. Also enclosed are a preliminary project budget and a Notice of Award to be signed by the Mayor.

If you have any questions or if we can be of assistance, please let us know.

Sincerely,

JAMES C. HAILEY & COMPANY
Consulting Engineers



James C. Hailey

Enclosures

CITY OF GALLATIN

Contract 820 - Town Creek Interceptor Extension

PROJECT BUDGET

CONSTRUCTION	\$	1,691,510.00
ENGINEERING DESIGN	\$	98,000.00
ENGINEERING DURING CONSTRUCTION	\$	36,000.00
INSPECTION	\$	40,000.00
PERMITS, FEES, SURVEYS, ETC	\$	15,000.00
CONTINGENCY	\$	<u>89,490.00</u>
TOTAL ESTIMATED PROJECT COST	\$	<u><u>1,970,000.00</u></u>

NOTICE OF AWARD

TO: Cleary Construction, Inc.
2006 Edmonton Road
Tompkinsville, KY 42167

PROJECT DESCRIPTION: CONTRACT 820 – TOWN CREEK INTERCEPTOR EXTENSION

The **OWNER** has considered the **BID** submitted by you for the above-described **WORK** in response to its Advertisement to Bid dated November 2020, and Information for Bidders.

You are required by the Information for Bidders to execute the Agreement and furnish the required **CONTRACTOR'S** Performance and Payment Bond within ten (10) calendar days from the date of this Notice to you.

If you fail to execute said Agreement and to furnish said bonds within ten (10) days from the date of this Notice, said **OWNER** will be entitled to consider all your rights arising out of the **OWNER'S** acceptance of your **BID** as abandoned and as a forfeiture of your Bid Bond. The **OWNER** will be entitled to such other rights as may be granted by law.

You are required to return an acknowledged copy of this **NOTICE OF AWARD** to the **OWNER**.

Dated this ____ day of _____, 2021.

City of Gallatin
OWNER
BY _____
Title Mayor

ACCEPTANCE OF NOTICE

Receipt of the above **NOTICE OF AWARD** is hereby acknowledged

By Cleary Construction, Inc.

this the ____ day of _____, 2021

By _____

Title _____

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

January 12, 2021

DEPARTMENT: **Engineering**

AGENDA # 3

SUBJECT:

Ordinance Appropriating \$102,000 for Completion of Infrastructure Improvements in the Home Depot Subdivision

SUMMARY:

Attached is an Ordinance to appropriate funds to cover costs associated with the completion of infrastructure in the Home Depot Subdivision. Also attached is a copy of the LOC (Letter of Credit) Demand letter along with a report showing the deposit of those funds.

RECOMMENDATION:

ATTACHMENT:

☐	Resolution
☒	Ordinance

☐	Correspondence
☐	Contract

☐	Bid Tabulation
☒	Other

Approved	☐
Rejected	☐
Deferred	☐

Notes:

ORDINANCE NO. 02101-1

ORDINANCE APPROPRIATING FUNDS FOR COMPLETION OF
INFRASTRUCTURE IMPROVEMENTS IN THE HOME DEPOT SUBDIVISION

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$102,000 is hereby appropriated from surety proceeds received for completion of infrastructure in the Home Depot subdivision;

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$102,000 be appropriated from account number 110-35200, Forfeitures, to account number 110-41670-931-262, Home Depot;

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect on final passage, the public welfare requiring such.

PASSED FIRST READING:

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY



October 28, 2020

Global Trade Client Services Team
JP Morgan Chase
300 South Riverside Plaza
Mail Code IL-1-0236
Chicago, IL. 60606-0236

**RE: Home Depot Subdivision - Plat 2004-26 - 21-383
Drawn Under Irrevocable Letter of Credit No #00346207
Formal Demand to Call Subdivision Letter of Credit for Home Depot**

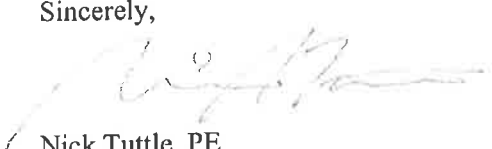
Certified Mail #7007 1490 0002 9001 5713

The City of Gallatin hereby makes formal demand to call the subdivision Irrevocable Letter of Credit for Home Depot and demands payment in the amount of \$102,000 to be drawn under JP Morgan Chase Bank Irrevocable Letter of Credit #00346207 for failure to complete required improvements as approved by the City of Gallatin. Enclosed is Resolution #2020-089 approved by the Gallatin Planning Department on September 28, 2020.

The City hereby certifies that the amount of \$102,000 to be drawn on Irrevocable Letter of Credit #00346207 is legally due and owing to the City pursuant to Gallatin Zoning Ordinance, Section 15.03.080, Surety Required, a copy of which is enclosed with this demand for payment. The amount represents the unpaid sum due to the City for Home Depot's failure to complete improvements as required by said section.

Funds should be mailed by certified mail to Gallatin City Hall, 132 West Main Street, Gallatin, TN 37066, to the attention of Marianne Mudrak, Planning Department.

Sincerely,


Nick Tuttle, PE
City Engineer

MM

Enclosures

cc: Lejuwaan, Randal J.
Susan High-McAuley, City Attorney
Deborah Straw
File #1-27-04C



Activity - Deposit Accounts

Report created: 11/30/2020 12:03:27 PM (ET)
 Account: [REDACTED] Checking • OPERATING ACCOUNT • [REDACTED]
 Date range: 11/25/2020 to 11/30/2020
 Transaction types: Selected transactions
 Detail option: Includes transaction detail
 Total by day: Includes totals by day within the selected date range
 Amount range: \$100,000.00 to \$150,000.00

[REDACTED] • Checking • OPERATING ACCOUNT • Current [REDACTED]

Post Date	Reference	Additional Reference	Description	Debit	Credit	Calculated Ending Balance
11/27/2020			INCOMING MONEY TRANSFER [REDACTED] /REC/HOMEDEPOTUSA INC SB LC00346207		\$102,000.00	Not available for this date
11/27/2020	Total Calculated Credits (1 Item)				\$102,000.00	
11/30/2020	Totals			\$0.00	\$102,000.00	

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

Janaury 12, 2021

DEPARTMENT: **Finance**

AGENDA # 4

SUBJECT:

Report on bond sale

SUMMARY:

Report results of 2020/2021 GO bond sale which was held on 1/6/2021

Request approval to move forward with golf course irrigation system replacement prior to appropriation of funds due to timing constraints and course disruptions.

RECOMMENDATION:

approval

ATTACHMENT:

☐ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☐
Rejected ☐
Deferred ☐

Notes:

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

January 12, 2021

DEPARTMENT: **Finance**

AGENDA # 5

SUBJECT:

monthly financial reports

SUMMARY:

Financial reports for November

RECOMMENDATION:

Acceptance

ATTACHMENT:

☐ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☒ Other

Approved ☐
Rejected ☐
Deferred ☐

Notes:

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rachel.nichols

City of Gallatin
YEAR-TO-DATE BUDGET REPORT

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FOR 2021 05

ACCOUNTS FOR: 110 GENERAL FUND	ORIGINAL APPROP	TRANFRS/ ADJSTMTS	REVISED BUDGET	YTD ACTUAL	ENCUMBRANCES	AVAILABLE BUDGET	PCT USED
110 GENERAL FUND	-36,374,022	-4,637,615	-41,011,637	-9,469,838.41	.00	-31,541,798.45	23.1%
11041310 CITY ADMINISTRATION	1,019,944	48,044	1,067,988	307,902.69	43,750.00	716,335.32	32.9%
11041500 FINANCE	707,873	11,000	718,873	259,373.71	3,300.00	456,199.29	36.5%
11041510 CITY RECORDER	519,311	20,194	539,505	178,681.60	.00	360,823.65	33.1%
11041590 INSURANCES	845,000	380,159	1,225,159	718,435.22	.00	506,723.78	58.6%
11041620 CITY ATTORNEY	527,878	5,042	532,920	178,177.53	.00	354,742.42	33.4%
11041640 INFORMATION TECHNOLOGY	1,624,691	136,131	1,760,822	707,909.65	277,153.70	775,758.42	55.9%
11041650 HUMAN RESOURCES	371,042	0	371,042	124,161.34	.00	246,880.66	33.5%
11041670 ENGINEERING	2,423,683	4,657,151	7,080,834	544,665.63	1,408,174.05	5,127,994.32	27.6%
11041690 PLANNING COMMISSION	29,714	0	29,714	7,357.45	.00	22,356.55	24.8%
11041700 PLANNING	875,107	51,038	926,145	260,813.63	22,899.08	642,432.70	30.6%
11041800 GEN GOVERNMENT BUILDINGS	455,381	125,195	580,576	166,275.62	36,155.37	378,144.79	34.9%
11041990 CODES ADMINISTRATION	1,326,828	0	1,326,828	492,857.47	4,271.75	829,698.98	37.5%
11042110 POLICE DEPARTMENT	9,595,913	331,517	9,927,430	3,238,925.75	729,561.79	5,958,942.78	40.0%
11042124 A.C.E.S. PROGRAM	110,000	0	110,000	20,963.00	.00	89,037.00	19.1%
11042220 FIRE DEPARTMENT	7,844,340	52,230	7,896,570	3,204,552.89	105,252.66	4,586,764.45	41.9%
11043000 PUBLIC WORKS ADMINISTRATIO	353,696	151,295	504,991	145,288.64	63,969.82	295,732.18	41.4%
11043120 STREET MAINTENANCE & REPAI	1,491,911	123,657	1,615,568	435,470.29	99,139.79	1,080,958.21	33.1%
11043160 STREET LIGHTING & SIGNALS	480,591	20,433	501,024	165,531.33	2,790.00	332,702.67	33.6%
11043170 VEHICLE MAINTENANCE	623,394	32,998	656,392	249,602.49	4,699.00	402,090.51	38.7%
11044200 COMM ENHANCEMENT	236,000	-83,000	153,000	87,650.00	.00	65,350.00	57.3%
11044300 COMM SERVICES	28,925	93,000	121,925	83,500.00	10,500.00	27,925.00	77.1%
11044410 LEISURE SERVICE	0	0	0	129.59	.00	-129.59	100.0%
11044420 CIVIC CENTER	1,561,349	55,105	1,616,454	402,455.05	26,318.52	1,187,679.96	26.5%
11044450 GOLF COURSE	914,433	173,928	1,088,361	377,228.71	9,429.00	701,703.29	35.5%
11044720 PARKS	1,776,850	1,763,088	3,539,938	1,820,123.51	265,600.01	1,454,214.24	58.9%
11047100 ECONOMIC COMMUNITY DEVE	383,486	1,003,329	1,386,815	161,459.43	3,486,625.38	-2,261,269.70	263.1%
11047200 ECONOMIC DEVELOPMENT UTILI	75,000	175,824	250,824	18,418.14	37,627.78	194,777.86	22.3%
11047210 TOURISM	25,000	0	25,000	.00	.00	25,000.00	.0%
11049000 BOND EXPENSES	2,080,135	0	2,080,135	342,325.01	.00	1,737,809.99	16.5%
TOTAL GENERAL FUND	1,933,453	4,689,743	6,623,196	5,230,396.96	6,637,217.70	-5,244,418.72	179.2%
TOTAL REVENUES	-36,374,022	-4,637,615	-41,011,637	-9,469,838.41	.00	-31,541,798.45	
TOTAL EXPENSES	38,307,475	9,327,358	47,634,833	14,700,235.37	6,637,217.70	26,297,379.73	

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City of Gallatin
YEAR-TO-DATE BUDGET REPORT

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FOR 2021 05

ACCOUNTS FOR: 122 SPECIAL FUNDS	ORIGINAL APPROP	TRANFRS/ ADJSTMTS	REVISED BUDGET	YTD ACTUAL	ENCUMBRANCES	AVAILABLE BUDGET	PCT USED
122 SPECIAL FUNDS	-25,000	0	-25,000	-52,177.09	.00	27,177.09	208.7%
12242122 SOR	5,000	0	5,000	.00	.00	5,000.00	.0%
12242150 POLICE SPECIAL	20,000	0	20,000	21,637.44	.00	-1,637.44	108.2%
TOTAL SPECIAL FUNDS	0	0	0	-30,539.65	.00	30,539.65	100.0%
TOTAL REVENUES	-25,000	0	-25,000	-52,177.09	.00	27,177.09	
TOTAL EXPENSES	25,000	0	25,000	21,637.44	.00	3,362.56	

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City of Gallatin
YEAR-TO-DATE BUDGET REPORT

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FOR 2021 05

ACCOUNTS FOR: 123 STORMWATER FUND	ORIGINAL APPROP	TRANFRS/ ADJSTMTS	REVISED BUDGET	YTD ACTUAL	ENCUMBRANCES	AVAILABLE BUDGET	PCT USED
123 STORMWATER FUND	-1,825,000	0	-1,825,000	-840,810.20	.00	-984,189.80	46.1%
12343150 STORMWATER MAINTENANCE	786,146	65,321	851,467	174,911.39	143,027.38	533,528.23	37.3%
12343800 STORMWATER ADMINISTRATION	967,829	453,580	1,421,409	121,299.08	114,305.79	1,185,804.34	16.6%
TOTAL STORMWATER FUND	-71,025	518,901	447,876	-544,599.73	257,333.17	735,142.77	-64.1%
TOTAL REVENUES	-1,825,000	0	-1,825,000	-840,810.20	.00	-984,189.80	
TOTAL EXPENSES	1,753,975	518,901	2,272,876	296,210.47	257,333.17	1,719,332.57	

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|City of Gallatin
|YEAR-TO-DATE BUDGET REPORT

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FOR 2021 05

ACCOUNTS FOR: 124 IDB & HEHFB	ORIGINAL APPROP	TRANFRS/ ADJSTMTS	REVISED BUDGET	YTD ACTUAL	ENCUMBRANCES	AVAILABLE BUDGET	PCT USED
124 IDB & HEHFB	-266,525	0	-266,525	-39.01	.00	-266,485.99	.0%
12447220 IDB	44,970	0	44,970	2,884.63	.00	42,085.37	6.4%
12447260 HEHFB	160,290	0	160,290	.00	.00	160,290.00	.0%
TOTAL IDB & HEHFB	-61,265	0	-61,265	2,845.62	.00	-64,110.62	-4.6%
TOTAL REVENUES	-266,525	0	-266,525	-39.01	.00	-266,485.99	
TOTAL EXPENSES	205,260	0	205,260	2,884.63	.00	202,375.37	

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City of Gallatin
YEAR-TO-DATE BUDGET REPORT

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FOR 2021 05

ACCOUNTS FOR:	ORIGINAL	TRANFRS/	REVISED	YTD ACTUAL	ENCUMBRANCES	AVAILABLE	PCT
125 ENVIRONMENTAL SERVICES	APPROP	ADJSTMTS	BUDGET			BUDGET	USED
125 ENVIRONMENTAL SERVICES	-2,120,000	-40,000	-2,160,000	-963,307.58	.00	-1,196,692.42	44.6%
12543210 ENVIRO SERV ADMIN	115,000	0	115,000	51,723.34	.00	63,276.66	45.0%
12543230 WASTE COLLECTION	2,024,654	218,482	2,243,136	981,089.09	4,397.42	1,257,649.69	43.9%
TOTAL ENVIRONMENTAL SERVICES	19,654	178,482	198,136	69,504.85	4,397.42	124,233.93	37.3%
TOTAL REVENUES	-2,120,000	-40,000	-2,160,000	-963,307.58	.00	-1,196,692.42	
TOTAL EXPENSES	2,139,654	218,482	2,358,136	1,032,812.43	4,397.42	1,320,926.35	

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City of Gallatin
YEAR-TO-DATE BUDGET REPORT

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FOR 2021 05

ACCOUNTS FOR: 127 DRUG FUND	ORIGINAL APPROP	TRANFRS/ ADJSTMTS	REVISED BUDGET	YTD ACTUAL	ENCUMBRANCES	AVAILABLE BUDGET	PCT USED
127 DRUG FUND	-108,000	0	-108,000	-31,686.24	.00	-76,313.76	29.3%
12742129 DRUG INVESTIGATION & CONTR	108,000	0	108,000	106,550.11	.00	1,449.89	98.7%
TOTAL DRUG FUND	0	0	0	74,863.87	.00	-74,863.87	100.0%
TOTAL REVENUES	-108,000	0	-108,000	-31,686.24	.00	-76,313.76	
TOTAL EXPENSES	108,000	0	108,000	106,550.11	.00	1,449.89	

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City of Gallatin
YEAR-TO-DATE BUDGET REPORT

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FOR 2021 05

ACCOUNTS FOR: 311 CAPITAL PROJECTS	ORIGINAL APPROP	TRANFRS/ ADJSTMTS	REVISED BUDGET	YTD ACTUAL	ENCUMBRANCES	AVAILABLE BUDGET	PCT USED
311 CAPITAL PROJECTS	0	0	0	-1,260,137.95	.00	1,260,137.95	100.0%
31141670 ENGINEER CAPITAL	0	16,593,075	16,593,075	2,087,444.62	12,347,458.68	2,158,171.67	87.0%
31143000 PUBLIC WORKS CAPITAL	0	13,640	13,640	.00	.00	13,640.00	.0%
TOTAL CAPITAL PROJECTS	0	16,606,715	16,606,715	827,306.67	12,347,458.68	3,431,949.62	79.3%
TOTAL REVENUES	0	0	0	-1,260,137.95	.00	1,260,137.95	
TOTAL EXPENSES	0	16,606,715	16,606,715	2,087,444.62	12,347,458.68	2,171,811.67	

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|City of Gallatin
|YEAR-TO-DATE BUDGET REPORT

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ACCOUNTS FOR:	ORIGINAL	TRANFRS/	REVISED	YTD ACTUAL	ENCUMBRANCES	AVAILABLE	PCT
313 2014 GO BOND	APPROP	ADJSTMTS	BUDGET			BUDGET	USED
313 2014 GO BOND	0	0	0	-328.08	.00	328.08	100.0%
31341670 2014 BOND ENGINEERING PROJ	0	56,233	56,233	.00	.00	56,232.74	.0%
31344410 2014 BOND LEISURE SERV PRO	0	208,114	208,114	104,698.90	.00	103,415.52	50.3%
TOTAL 2014 GO BOND	0	264,347	264,347	104,370.82	.00	159,976.34	39.5%
TOTAL REVENUES	0	0	0	-328.08	.00	328.08	
TOTAL EXPENSES	0	264,347	264,347	104,698.90	.00	159,648.26	

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City of Gallatin
YEAR-TO-DATE BUDGET REPORT

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FOR 2021 05

ACCOUNTS FOR: 314	2016 GO BOND	ORIGINAL APPROP	TRANFRS/ ADJSTMTS	REVISED BUDGET	YTD ACTUAL	ENCUMBRANCES	AVAILABLE BUDGET	PCT USED
314	2016 GO BOND	0	0	0	-2,145.18	.00	2,145.18	100.0%
31441670	2016 BOND ENGINEERING	0	5,708,554	5,708,554	.00	73,503.75	5,635,050.74	1.3%
31442220	2016 BOND FIRE DEPT	0	154,680	154,680	.00	.00	154,679.55	.0%
TOTAL 2016 GO BOND		0	5,863,234	5,863,234	-2,145.18	73,503.75	5,791,875.47	1.2%
TOTAL REVENUES		0	0	0	-2,145.18	.00	2,145.18	
TOTAL EXPENSES		0	5,863,234	5,863,234	.00	73,503.75	5,789,730.29	

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rachel.nichols

City of Gallatin
YEAR-TO-DATE BUDGET REPORT

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FOR 2021 05

ACCOUNTS FOR: 319	2014 W/S REV BOND	ORIGINAL APPROP	TRANFRS/ ADJSTMTS	REVISED BUDGET	YTD ACTUAL	ENCUMBRANCES	AVAILABLE BUDGET	PCT USED
319	2014 W/S REV BOND	0	0	0	-386.09	.00	386.09	100.0%
	TOTAL 2014 W/S REV BOND	0	0	0	-386.09	.00	386.09	100.0%
	TOTAL REVENUES	0	0	0	-386.09	.00	386.09	

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ACCOUNTS FOR: 320 2019 GAS BOND	ORIGINAL APPROP	TRANFRS/ ADJSTMTS	REVISED BUDGET	YTD ACTUAL	ENCUMBRANCES	AVAILABLE BUDGET	PCT USED
320 2019 GAS REVENUE BOND	0	-5,889,196	-5,889,196	-25,754.58	.00	-5,863,441.79	.4%
32052414 2019 GAS LINE CONTRACT	0	3,335,048	3,335,048	736,675.92	.00	2,598,372.56	22.1%
TOTAL 2019 GAS BOND	0	-2,554,148	-2,554,148	710,921.34	.00	-3,265,069.23	-27.8%
TOTAL REVENUES	0	-5,889,196	-5,889,196	-25,754.58	.00	-5,863,441.79	
TOTAL EXPENSES	0	3,335,048	3,335,048	736,675.92	.00	2,598,372.56	

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ACCOUNTS FOR: 413	WATER & SEWER	ORIGINAL APPROP	TRANFRS/ ADJSTMTS	REVISED BUDGET	YTD ACTUAL	ENCUMBRANCES	AVAILABLE BUDGET	PCT USED
413	WATER & SEWER							
413	WATER & SEWER	-17,236,750	-8,400,000	-25,636,750	-6,935,202.52	.00	-18,701,547.48	27.1%
41352113	WATER TREATMENT & PUMPING	1,914,383	0	1,914,383	656,372.45	25,317.10	1,232,693.45	35.6%
41352114	TRANSMISSION & DISTRIBUTIO	1,675,901	5,382,491	7,058,392	1,559,094.27	114,761.53	5,384,536.10	23.7%
41352116	CUSTOMER ACCOUNTING & COLL	806,072	0	806,072	278,492.82	.00	527,579.18	34.5%
41352117	ADMINISTRATION & GENERAL	1,496,383	125,000	1,621,383	367,788.14	66,309.99	1,187,284.87	26.8%
41352123	DEPREC ON FIXED	3,428,184	0	3,428,184	.00	.00	3,428,184.00	.0%
41352124	BOND EXPENSES	3,035,086	0	3,035,086	611,642.51	.00	2,423,443.49	20.2%
41352125	PAYING AGENTS	1,350	0	1,350	300.00	.00	1,050.00	22.2%
41352211	SEWER COLLECTION (LINES)	1,375,913	17,215,420	18,591,333	1,121,905.01	45,743.05	17,423,684.74	6.3%
41352212	SEWER SYS REHAB	508,130	2,994,974	3,503,104	210,421.06	9,967.45	3,282,715.49	6.3%
41352213	SEWER TREATMENT & DISPOSAL	2,030,066	9,911	2,039,977	655,544.09	24,748.60	1,359,684.23	33.3%
41352217	SEWER ADMIN & GENERAL EXP	309,178	0	309,178	181,384.48	.00	127,793.52	58.7%
41352219	SEWER PRETREATMENT PROGRAM	105,827	0	105,827	35,045.91	.00	70,781.09	33.1%
	TOTAL WATER & SEWER	-550,277	17,327,796	16,777,519	-1,257,211.78	286,847.72	17,747,882.68	-5.8%
	TOTAL REVENUES	-17,236,750	-8,400,000	-25,636,750	-6,935,202.52	.00	-18,701,547.48	
	TOTAL EXPENSES	16,686,473	25,727,796	42,414,269	5,677,990.74	286,847.72	36,449,430.16	

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City of Gallatin
YEAR-TO-DATE BUDGET REPORT

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FOR 2021 05

ACCOUNTS FOR:	ORIGINAL	TRANSFERS/	REVISED	YTD ACTUAL	ENCUMBRANCES	AVAILABLE	PCT
415 NATURAL GAS	APPROP	ADJSTMTS	BUDGET			BUDGET	USED
415 NATURAL GAS	-16,796,000	0	-16,796,000	-2,450,185.67	.00	-14,345,814.33	14.6%
41552123 DEPREC ON FIXED	900,000	0	900,000	.00	.00	900,000.00	.0%
41552124 BOND EXPENSES	390,788	0	390,788	100,168.75	.00	290,619.25	25.6%
41552411 PURCHASED GAS	10,000,000	0	10,000,000	1,320,349.09	.00	8,679,650.91	13.2%
41552414 TRANSMISSION & DISTRIBUTIO	1,727,242	1,661,037	3,388,279	1,301,657.51	429,025.40	1,657,596.53	51.1%
41552416 CUSTOMER ACCOUNTING	732,258	4,900	737,158	252,837.81	.00	484,320.19	34.3%
41552417 ADMIN & GENERAL EXP	845,659	100,000	945,659	182,214.04	34,393.53	729,051.43	22.9%
TOTAL NATURAL GAS	-2,200,053	1,765,937	-434,116	707,041.53	463,418.93	-1,604,576.02	-269.6%
TOTAL REVENUES	-16,796,000	0	-16,796,000	-2,450,185.67	.00	-14,345,814.33	
TOTAL EXPENSES	14,595,947	1,765,937	16,361,884	3,157,227.20	463,418.93	12,741,238.31	

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YEAR-TO-DATE BUDGET REPORT

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ACCOUNTS FOR:		ORIGINAL	TRANFRS/	REVISED			AVAILABLE	PCT
611	WITHERSPOON LOAN FUND	APPROP	ADJSTMTS	BUDGET	YTD ACTUAL	ENCUMBRANCES	BUDGET	USED
611	WITHERSPOON LOAN FUND	0	0	0	-2,655.09	.00	2,655.09	100.0%
	TOTAL WITHERSPOON LOAN FUND	0	0	0	-2,655.09	.00	2,655.09	100.0%
	TOTAL REVENUES	0	0	0	-2,655.09	.00	2,655.09	

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FOR 2021 05

ACCOUNTS FOR:		ORIGINAL	TRANFRS/	REVISED			AVAILABLE	PCT
612	CEMETERY TRUST FUND	APPROP	ADJSTMTS	BUDGET	YTD ACTUAL	ENCUMBRANCES	BUDGET	USED
612	CEMETERY TRUST FUND	0	0	0	-275.40	.00	275.40	100.0%
	TOTAL CEMETERY TRUST FUND	0	0	0	-275.40	.00	275.40	100.0%
	TOTAL REVENUES	0	0	0	-275.40	.00	275.40	

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

January 12, 2021

DEPARTMENT: PLANNING DEPARTMENT

AGENDA # 6

SUBJECT:

Resolution No. R2101-9 authorizing use of City-maintained right-of-way (once constructed and accepted by the city) with an Indemnity and Hold Harmless Agreement and a Certificate of Liability for the installation of street trees in the Cumberland Point Development.

SUMMARY:

Applicant requests approval of a Resolution authorizing an Indemnity and Hold Harmless Agreement for the installation of street trees within the Duvall Drive, Becks Place, Sperling Drive rights-of-way in the Cumberland Point Development. On September 23, 2019, the Planning Commission approved the Final Master Development Plan for Cumberland Point, Phase 1 and 2. The master plan included street trees with a Condition of Approval that the use of the right-of-way shall be approved by the City Council prior to installation.

Street trees have been previously approved for other developments in Gallatin, including Fairvue Plantation, Newman's Crossing, and Kennesaw Farms.

The Hold Harmless Agreement and Liability Insurance for Phase 1 are under review in the City Attorney's Office. Phase 2 will require its own Hold Harmless Agreement once the plat is ready to be recorded.

RECOMMENDATION:

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☒ Other

Approved ☐
Rejected ☐
Deferred ☐

Notes:

RESOLUTION NO. R21Ø1-9

RESOLUTION APPROVING AN INDEMNITY AND HOLD HARMLESS AGREEMENT WITH A CERTIFICATE OF LIABILITY INSURANCE TO USE THE CITY-MAINTAINED RIGHT-OF-WAY (ONCE CONSTRUCTED AND ACCEPTED BY THE CITY) OF DUVALL DRIVE, BECKS PLACE, AND SPERLING DRIVE IN THE CUMBERLAND POINT SUBDIVISION FOR THE INSTALLATION AND MAINTENANCE OF STREET TREES.

WHEREAS, the Tenn Properties Cumberland Point GP, representing the Cumberland Point HOA, seeks approval from the Gallatin City Council to install and maintain street trees in the rights-of-way in Cumberland Point, Phases 1 and 2, Duvall Drive, Becks Place, and Sperling Drive, and

WHEREAS, on September 23, 2019, the Gallatin Municipal Regional Planning Commission reviewed and approved a Final Master Development Plan allowing for the installation of street trees provided that the developer enters into an Indemnity and Hold Harmless Agreement with the City; and

NOW THEREFORE BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that the Gallatin City Council approves the Indemnity and Hold Harmless Agreement and authorizes the use of City-maintained right-of-way of Duvall Drive, Becks Place, and Sperling Drive in the Cumberland Point Subdivision, for the installation and maintenance of street trees as approved by the City of Gallatin Municipal Regional Planning Commission in Resolution No. 2019-116. All other city ordinances, rules and regulations shall be followed with respect to the installation and maintenance of the landscaping and use of the right-of-way.

BE IT FURTHER RESOLVED, that this resolution shall take effect upon passage, the public welfare requiring it.

IT IS SO ORDERED.

AYE:

NAY:

DATE:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

INDEMNITY AND HOLD HARMLESS AGREEMENT

The undersigned property owner, Tenn Properties Cumberland Point GP, (hereinafter "Indemnitor") does hereby grant to the City of Gallatin, a Tennessee municipal corporation, (hereinafter "City") on this 24th day of December, 2020, the following:

WHEREAS, Indemnitor desires to locate landscaping and trees (the "Structure") in the City right-of-way ("the Encroachment") of Sperling Drive, Duvall Drive, and Becks Place in accordance with the Municipal Code and/or Zoning Ordinance on property generally located on the Final Plat of Cumberland Point Phase 1 & Open Space E (SUBD-2020-006), Gallatin, Tennessee and;

WHEREAS, in accordance with the City Municipal Code and/or Zoning Ordinance pursuant to City of Gallatin Municipal Code Sec. 15-3, 15-4 and 15-5 and City of Gallatin Zoning Ordinance Sec. 13.04 (collectively "Codes"), the City requires indemnification to conform with Codes; and

WHEREAS, Indemnitor agrees to indemnify and hold harmless the City, its agents, servants, and employees from any claims and liability which may be made against the City for permitting the Structure to be located on or over the City right-of-way.

NOW THEREFORE, in consideration of the City permitting the Indemnitor to locate the Structure on or over the City right-of-way, the Indemnitor hereby agrees and grants to the City the following:

1. Indemnitor undertakes to indemnify the City from any and all liability, loss, or damage the City may suffer as a result of the claims, demands, costs or judgments against the City and arising from the Encroachment.
2. Indemnitor agrees to defend, at its own expense against any claims brought or actions filed against the City with respect to the Encroachment, whether such claims or actions are rightfully or wrongfully brought or filed.
3. Indemnitor agrees to reimburse the City for any necessary expenses, reasonable attorney fees, or costs incurred by the City in the enforcement of this Indemnity Agreement.
4. Indemnitor agrees to maintain in full force and effect a policy of comprehensive liability insurance in a minimum amount of one million dollars (\$1,000,000), said policy to name the City as an additional insured. A copy of the initial certificate of insurance shall be provided by the Indemnitor within ten (10) days of execution of this Agreement, and prior to placement of the Structure on or over the City's right-of-way.
5. Indemnitor hereby agrees to abide by any local, state or federal law regulating the Encroachment. By signing this Agreement, Indemnitor acknowledges that the permission granted by the City herein may be revoked: 1) at any time in the interests of public health, safety & welfare; 2) in the event that it becomes necessary for the City to perform maintenance of any sort on the City's right-of-way; or 3) if the Indemnitor fails to perform any of its obligations under this Agreement following prior written notice and demand from the City to Indemnitor, with an

allowance of 30 days for Indemnitor to perform any actions demanded by City in furtherance of Indemnitor's obligations under this Agreement. If City revokes its permission granted for the Encroachment, City will make reasonable efforts to accommodate alternative arrangements for the Encroachment so as to minimize the expense and burden on Indemnitor of the removal of the Encroachment. Said removal will be at the sole expense of the Indemnitor.

6. If, after notice to remove given by the City pursuant to the paragraph above, the Indemnitor fails within 30 days following such notice to remove the Structure as requested by the City, the Indemnitor agrees and understands that the City will remove the Structure and assess the costs of removal to the Indemnitor.

7. The terms and conditions of this Agreement shall be binding upon the Indemnitor, the Indemnitor's heirs, legal representatives, assigns, successors, and transferees. In the event of default by the Indemnitor or the Indemnitor's heirs, personal representatives, assigns, successors, or transferees, hereunder, in addition to all other legal damages and rights of the City, Indemnitor or the Indemnitor's heirs, personal representatives, assigns, successors, or transferees, shall be liable to the City for City's reasonable attorney's fees incurred as a result of said breach of this Agreement. Any amendment, modification or change to this Agreement will be enforceable only if it is in writing, properly approved by the City, and signed by the City and Indemnitor.

8. This Agreement may be transmitted and/or signed by facsimile or e-mail transmission (e.g. "pdf" or "tif"). The effectiveness of any such signatures shall, subject to applicable law, have the same force and effect as manually-signed originals and shall be binding on all parties to this Agreement.

[Signature Page Follows]

In witness hereof, the Indemnitor has executed this agreement to be effective as of date first written above.

INDEMNITOR:

By: R. Robert Horton

Name: R. Robert Horton

Its: Secretary

STATE OF TENNESSEE)

COUNTY OF SUMNER)

Personally appeared before me, R. Robert Horton, with whom I am personally acquainted, and who acknowledged that he executed the within instrument for the purposes therein contained, and who further acknowledged that he is the authorized agent of Tenn Properties Circlebed Park, GP which is the Indemnitor and is authorized by the aforesaid to execute this instrument on its behalf.

Witness, my hand, at office, this the 25th day of December, 2020.

Michael P Stanton
NOTARY PUBLIC

My Commission Expires: 7-19-21





CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY)

12/29/2020

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must have ADDITIONAL INSURED provisions or be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER Ivy Insurance Inc. 7101 Sharondale Court Suite 700 Brentwood TN 37027		CONTACT NAME: Paul Hogg PHONE (A/C, No, Ext): 6156788278 E-MAIL ADDRESS: bchance@ivy-insurance.com FAX (A/C, No):	
INSURED Tenn Properties Cumberland Point. 190D Saundersville Rd. Ste. 1003 Hendersonville TN 37075		INSURER(S) AFFORDING COVERAGE INSURER A: BUILDERS MUT INS CO INSURER B: INSURER C: INSURER D: INSURER E: INSURER F:	
		NAIC # 10844	

COVERAGES**CERTIFICATE NUMBER:****REVISION NUMBER:**

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	ADDL INSD	SUBR WVD	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS
A	☒ COMMERCIAL GENERAL LIABILITY ☐ CLAIMS-MADE ☒ OCCUR GEN'L AGGREGATE LIMIT APPLIES PER: ☐ POLICY ☐ PRO-JECT ☐ LOC OTHER:	Y		CPP 0082182 02	12/06/2020	12/06/2021	EACH OCCURRENCE \$ 1,000,000
	DAMAGE TO RENTED PREMISES (Ea occurrence) \$ 100,000						
	MED EXP (Any one person) \$ 5,000						
	PERSONAL & ADV INJURY \$ 1,000,000						
	GENERAL AGGREGATE \$ 2,000,000						
							PRODUCTS - COMP/OP AGG \$ 2,000,000
	AUTOMOBILE LIABILITY ☐ ANY AUTO ☐ OWNED AUTOS ONLY ☐ HIRED AUTOS ONLY ☐ SCHEDULED AUTOS ☐ NON-OWNED AUTOS ONLY						COMBINED SINGLE LIMIT (Ea accident) \$
							BODILY INJURY (Per person) \$
							BODILY INJURY (Per accident) \$
							PROPERTY DAMAGE (Per accident) \$
	UMBRELLA LIAB EXCESS LIAB DED RETENTION \$						EACH OCCURRENCE \$
							AGGREGATE \$
	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? (Mandatory in NH) If yes, describe under DESCRIPTION OF OPERATIONS below						PER STATUTE ☐ OTHER ☐
							E.L. EACH ACCIDENT \$
							E.L. DISEASE - EA EMPLOYEE \$
							E.L. DISEASE - POLICY LIMIT \$

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (ACORD 101, Additional Remarks Schedule, may be attached if more space is required)

City of Gallatin is named as additional insured as per written contract as respects to Tenn Properties Cumberland Point.

CERTIFICATE HOLDER**CANCELLATION**

SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS.

AUTHORIZED REPRESENTATIVE

Brent Chance

City of Gallatin

132 West Main St.

Gallatin TN 37066

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**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

JANUARY 12, 2021

DEPARTMENT: PLANNING DEPARTMENT

AGENDA # 7

SUBJECT:

Resolution No. R2101-03 recommending approval of an amendment to the Gallatin Urban Growth Boundary to the County Coordinating Committee

SUMMARY:

The Planning Department requests City Council approve a resolution recommending an amendment to the Gallatin Urban Growth Boundary. The Urban Growth Boundary was established in 2000 as required by Tennessee Code Annotated, Title 6, Chapter 58, Sections 101-108. The Urban Growth Boundary was initially established to encompass an area that the City believed would be necessary to accommodate existing and future urban development for a twenty year timeframe (until 2020). The current Urban Growth Boundary encompasses approximately 81 square miles including all 33.5 square miles in the city limits. At the request of Council, staff made changes to the UGB and prepared a report as required by statute. The Executive Summary of the report was presented to the Council Committee at the December 8, 2020 meeting. The final report will be completed prior to consideration of the Resolution on January 19th. If approved the Resolution/amendment will be sent to the County Coordinating Committee. Other communities in Sumner County have also proposed changes to their growth boundaries.

RECOMMENDATION:

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☐
Rejected ☐
Deferred ☐

Notes:

RESOLUTION NO. R2101-3

RESOLUTION ADOPTING AND RECOMMENDING TO THE SUMNER COUNTY COORDINATING COMMITTEE AN AMENDMENT TO THE CITY OF GALLATIN URBAN BOUNDARY OF THE GROWTH PLAN FOR SUMNER COUNTY RATIFIED BY THE GALLATIN CITY COUNCIL PURSUANT TO PUBLIC CHAPTER 1101, ACTS OF 1998

WHEREAS, Public Chapter 1101 of the Acts of 1998 required the Sumner County Coordinating Committee to prepare a Growth Plan for Sumner County which identifies urban growth boundaries for each municipality within the County and identifies planned growth areas and rural areas within the County in conformance with the provisions of Section 7 of said Act; and

WHEREAS, the Sumner County Coordinating Committee approved the Sumner County Growth Plan and the Growth Plan was ratified by the City of Gallatin upon approval of Resolution No. R0003-012 on March 7, 2000 after two public hearings on the matter, and

WHEREAS, the Growth Plan was amended to adjust the urban growth boundary for the City of White House and the planned growth area for Sumner County and was approved by the City of Gallatin Resolution No. R0112-083 on December 18, 2001; and

WHEREAS, the City of Gallatin prepared a report and identified additional areas within the vicinity of the City for inclusion in and exclusion from the Urban Growth Boundary of the City consistent with Tenn. Code Ann. § 6-58-106; and

WHEREAS, the City of Gallatin intends to transmit the request for the amendment to the Sumner County Growth Plan of the City of Gallatin to the Sumner County Coordinating Committee for review and consideration per Tenn. Code Ann. § 6-58-104 and has conducted two public hearings on the amended Growth Plan per Tenn. Code Ann. § 6-58-106 (a)(3); and

WHEREAS, after review and approval of the Amended Growth Plan, the Sumner County Coordinating Committee is required to submit the Amended Growth Plan for approval and ratification by the governing body of each municipality in the County and the County legislative body.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE that the Amended Growth Plan for Sumner County as defined in the map attached as Exhibit A, is hereby approved for submittal to the Sumner County Coordinating Committee.

BE IT FURTHER RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that this resolution shall take effect from and after its final passage, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING:

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

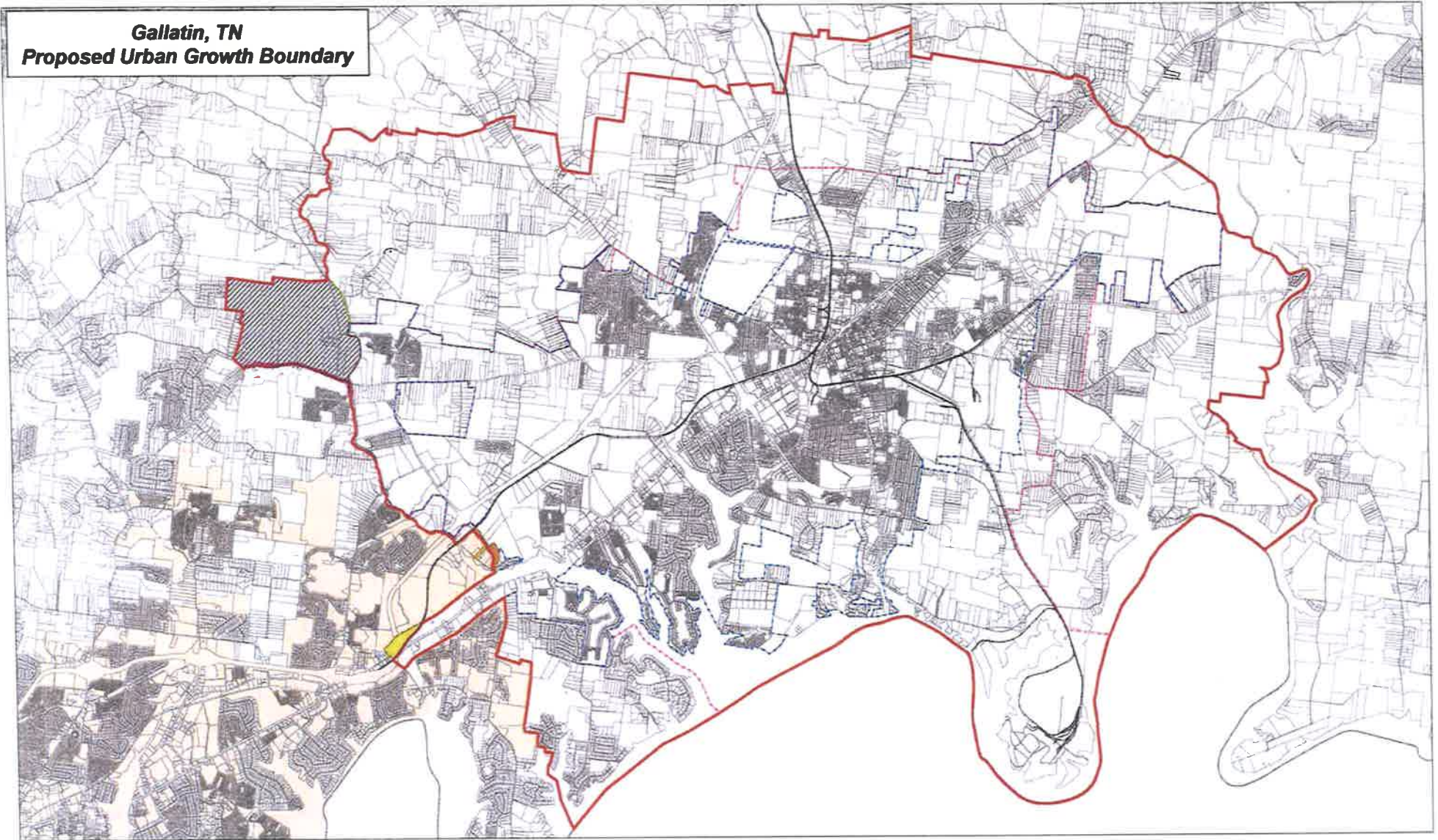
CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MACAULEY
CITY ATTORNEY

Exhibit A

**Gallatin, TN
Proposed Urban Growth Boundary**



	Gallatin City Limits	Acres - 21,432.45 Sq. Mi. - 37.9164
	Gallatin Planning Region	Acres - 30,232.2 Sq. Mi. - 47.2184
	Existing Gallatin Urban Growth Boundary	Acres - 51,605.335 Sq. Mi. - 81.1723
	County Boundary	

	Gallatin Proposed UGB	Acres - 53,647.59702 Sq. Mi. - 82.888895
	Transfer From Gallatin To Hendersonville UGB	Acres - 42.22 Sq. Mi. - 0.0641
	Transfer From Hendersonville To Gallatin UGB	Acres - 21.15 Sq. Mi. - 0.0330
	Ocala	Acres - 1,120.00 Sq. Mi. - 1.75



1 in = 1 miles
1:32,074



01/12/21

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

January 12, 2021

DEPARTMENT: EDA

AGENDA # 8

SUBJECT:

Re-appointment of Larry Wise & Len Assante to the IDB and HEHFB

SUMMARY:

RECOMMENDATION:

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☐
Rejected ☐
Deferred ☐

Notes:

RESOLUTION NO. R21Ø1-5

RESOLUTION RE-APPOINTING LEN ASSANTE TO THE GALLATIN INDUSTRIAL
DEVELOPMENT BOARD

WHEREAS, Tenn. Code Ann. § 7-53-301 provides that directors of a municipal board of industrial development shall be appointed by the governing body of the municipality; and

WHEREAS, members of the Industrial Development Board are appointed to six-year terms;

NOW THEREFORE BE IT RESOLVED, that Len Assante is hereby re-appointed to the Gallatin Industrial Development Board through July 31, 2026; and

BE IT FURTHER RESOLVED that this Resolution shall take effect from and after its final passage the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING:

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

RESOLUTION NO. R21Ø1-6

RESOLUTION RE-APPOINTING LARRY WISE TO THE GALLATIN INDUSTRIAL
DEVELOPMENT BOARD

WHEREAS, Tenn. Code Ann. § 7-53-301 provides that directors of a municipal board of industrial development shall be appointed by the governing body of the municipality; and

WHEREAS, members of the Industrial Development Board are appointed to six-year terms;

NOW THEREFORE BE IT RESOLVED, that Larry Wise is hereby re-appointed to the Gallatin Industrial Development Board through July 31, 2026; and

BE IT FURTHER RESOLVED that this Resolution shall take effect from and after its final passage the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING:

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

RESOLUTION NO. R21Ø1-7

RESOLUTION RE-APPOINTING LEN ASSANTE TO THE GALLATIN HEALTH EDUCATIONAL
AND HOUSING FACILITIES BOARD

WHEREAS Tenn. Code Ann. § 48-101-307 provides that directors of a health, educational and housing facilities board shall be appointed by the governing body of the municipality; and

WHEREAS, the terms of the health, educational and housing facilities board are six years;

NOW THEREFORE BE IT RESOLVED, that Len Assante is hereby re-appointed to the Gallatin Health Educational and Housing Facilities Board to serve through February 7, 2026; and

BE IT FURTHER RESOLVED that this Resolution shall take effect from and after its final passage the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING:

AYE:

NAY:

DATED:.

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

RESOLUTION NO. R21Ø1-8

RESOLUTION RE-APPOINTING LARRY WISE TO THE GALLATIN HEALTH EDUCATIONAL
AND HOUSING FACILITIES BOARD

WHEREAS Tenn. Code Ann. § 48-101-307 provides that directors of a health, educational and housing facilities board shall be appointed by the governing body of the municipality; and

WHEREAS, the terms of the health, educational and housing facilities board are six years;

NOW THEREFORE BE IT RESOLVED, that Larry Wise is hereby re-appointed to the Gallatin Health Educational and Housing Facilities Board through February 7, 2026; and

BE IT FURTHER RESOLVED that this Resolution shall take effect from and after its final passage the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING:

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

January 12, 2021

DEPARTMENT: Mayor's Office

AGENDA # 9

SUBJECT:
Gallatin Department of Electricity Power Board Appointment

SUMMARY:

RECOMMENDATION:

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☒ Other

Approved ☐
Rejected ☐
Deferred ☐

Notes:

RESOLUTION APPOINTING _____ TO THE GALLATIN ELECTRIC POWER
BOARD

WHEREAS, Tenn. Code Ann. § 7-52-108 provides that directors of a municipal electric board shall be appointed by the chief executive with confirmation by the governing body of the municipality; and

WHEREAS, Al Bennett served as a member of the Gallatin Electric Power Board with an expiration date of July 1, 2021; and

WHEREAS, the Mayor nominates _____ to serve the remainder of Al Bennett's term.

NOW, THEREFORE, BE IT RESOLVED, that _____ is hereby appointed to the Gallatin Electric Power Board.

BE IT FURTHER RESOLVED that this Resolution shall take effect from and after its final passage the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING:

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

GALLATIN ELECTRIC POWER BOARD

BOARD MEMBER:	TERM EXPIRES:	RESOLUTION:
John D. Alexander 780 Anthony Street Gallatin, TN 37066 (615)452-4168	January 3, 2023	R1901-4
Albert Bennett 1255 Lock 4 Road Gallatin, TN 37066 (615) 452-1868	July 1, 2021	R1901-3
Haley Meredieth 234 Grandview Circle Gallatin, TN 37066 (615)969-1513	July 1, 2023	R1907-29

Attorney:
Mark Smith
123 Public Square
Gallatin, TN 37066
(615) 452-2000 Work

4 Year Term

Appointed by Mayor and Confirmed by City Council

3 Members – 1 Council appointee limited to term in office

Compensation permitted

Qualifications: 1 Council Member; 2 Residents (Property Owners)